

25NNCV00077 25NNCV00077

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-31

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Case Number: 25NNCV00077 Hearing Date: July 31, 2026 Dept: A

TENTATIVE RULING

JULY 31, 2026

MOTION FOR JUDGMENT ON THE PLEADINGS

Los

Angeles Superior Court Case # 25NNCV00077

MP: Plaintiff Headway Capital, LLC

RP: No opposition received

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS AND RELEVANT

BACKGROUND:

Headway Capital, LLC ("Plaintiff") alleges that on February 3, 2023, it entered into a written Business Use Line of Credit Agreement ("Agreement") with Forward Inglewood, Inc. ("Forward") and Luis Carmona ("Carmona") (collectively, "Defendants"), wherein Carmona personally guaranteed the loan. Plaintiff alleges that within the last four years, Defendants defaulted under the Agreement's terms and failed to make payment thereunder, thereby breaching the Agreement. Plaintiff seeks \$81,638.62 in damages.

The Complaint, filed January 6, 2025, alleges a single cause of action for Breach of Contract.

On February 24, 2025, Carmona (a self-represented litigant) answered. On January 9, 2026, the Court granted Plaintiff's unopposed motion for an order deeming RFAs admitted against Carmona and ordered Carmona to pay \$60 in sanctions within 30 days of the order.

On April 23, 2026, Forward's default was entered.

RELEVANT

BACKGROUND AND MOTION ON CALENDAR:

On July 8, 2026, the Court specially set a hearing on a Motion for Judgment on the Pleadings for July 31, 2026.

On July 15, 2026, Plaintiff filed a Motion for Judgment on the Pleadings. The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL

STANDARD:

A

plaintiff may move for judgment on the pleadings on the ground that: (1) the complaint states facts sufficient to constitute a cause or causes of action against the defendant and (2) the answer does not state facts sufficient to constitute a defense to the complaint.

(C.C.P. § 438(c)(1)(A).) The

grounds for the motion shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (C.C.P. § 438(d).)

MEET AND CONFER:

C.C.P. §

439(a) requires that the moving party meet and confer with the party who filed the pleading that is subject to the motion for judgment on the pleadings. Upon review, the Court finds the meet and confer requirements were met. (Marquez Decl., ¶¶10-11.)

ANALYSIS:

Plaintiff seeks judgment on the pleading, arguing: (1) Carmona's answer does not controvert Plaintiff's allegations in the Complaint, (2) the Requests for Admissions ("RFAs") were admitted against Carmona (Mot., Ex. 1 [RFAs], Ex. 2 [January 9, 2026 Order]), and (3) the Complaint alleges sufficient facts against Defendant.

The Court continues the hearing on this motion for several reasons.

First, the motion is not accompanied by a proof of service showing by what means and when the motion was served on Defendants. While notice of the hearing was mailed July 14, 2026, there is not proof of notice of the actual motion. As noted above, Forward is in default and Carmona is a self-represented litigant. Mailing of the notice of hearing was sent not to Carmona but to Carmona's prior counsel. As this is a dispositive motion, the Court will continue the hearing to allow Carmona the full time and opportunity to oppose the motion.

Second, the Court notes that Carmona filed a Motion for Leave to Withdraw Deemed Admissions and to Vacate or

Set Aside the January 9, 2026 Order, which is currently set for December 4, 2026. The Court finds it would promote judicial economy to consider the motions together. Thus, Carmona's motion will be advanced so that it may be concurrently heard with Plaintiff's Motion for Judgment on the Pleadings.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff

Headway Capital, LLC's Motion for Judgment on the Pleadings came on regularly for hearing on July 31, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The Motion for Judgment on the Pleadings IS

CONTINUED TO SEPTEMBER 11, 2026 AT 9:00 A.M.

PLAINTIFF IS ORDERED TO FILE A PROOF OF SERVICE FOR THE MOTION. OPPOSITION AND REPLY DEADLINES SHALL BE TIED

TO THE CONTINUED HEARING DATE.

DEFENDANT CARMONA'S MOTION FOR LEAVE TO

WITHDRAW DEEMED ADMISSIONS AND TO VACATE OR SET ASIDE THE JANUARY 9, 2026 ORDER

IS ADVANCED FROM DECEMBER 4, 2026 AND CONTINUED TO SEPTEMBER 11, 2026 AT 9:00

A.M. SO THAT IT CAN BE HEARD CONCURRENTLY WITH PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS.

PLAINTIFF TO PROVIDE NOTICE.

IT IS SO ORDERED.